

Summons

Reginald MCREYNOLDS, Plaintiffs, v. THE CITY OF NEW YORK, Deputy Chief Thomas G. Mason, Deputy Inspector David A. Grossi, Assistant Chief Thomas P. Purteill, Deputy Inspector Charles Ortiz, Captain Stewart Leiber, Lieutenant Richard Higgins, SGT. Deborah Lagrasta, Police Officer Kyle Bach, Police Officer **Joseph Azevedo**, Police Officer Destefano, Police Officer Diaz and SGT. Joseph Mineo, all being sued in their official and individual Capacities, [Original Image of 2011 WL 332152 \(PDF\)](#)

2011 WL 332152 (N.Y.Sup.) (Trial Pleading)
 Supreme Court of New York.
 Bronx County

Reginald MCREYNOLDS, Plaintiffs,
 v.

THE CITY OF NEW YORK, Deputy Chief Thomas G. Mason, Deputy Inspector David A. Grossi, Assistant Chief Thomas P. Purteill, Deputy Inspector Charles Ortiz, Captain Stewart Leiber, Lieutenant Richard Higgins, SGT. Deborah Lagrasta, Police Officer Kyle Bach, Police Officer **Joseph Azevedo**, Police Officer Destefano, Police Officer Diaz and SGT. Joseph Mineo, all being sued in their official and individual Capacities,
 Defendants.

No. 0300732-2011.
 January 24, 2011.

Summons

Cronin & Byczek, LLP, Attorneys for Plaintiff, 1983 Marcus Avenue, Suite C-120, Lake Success, NY 11042, (516) 358-1700.

TO THE ABOVE NAMED DEFENDANT (S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with the summons, to serve a Notice of Appearance on the plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint:

Dated: Lake Success, New York January 24, 2011

VERIFIED COMPLAINT

Plaintiff, by his attorneys, the law office of CRONIN & BYCZEK, LLP, as and for his Complaint, respectfully allege, upon information and belief, as follows:

1. At all times hereinafter mentioned, plaintiff was and still is a black male resident of the County of Bronx, State of New York and is a Sergeant within the New York City Police Department and has been a sworn officer since October 15, 1990.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under the laws of the State of New York, and is authorized by law to maintain a Police Department for which it is ultimately responsible.
3. At all times hereinafter mentioned, defendant DEPUTY CHIEF THOMAS G. MASON was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.
4. At all times hereinafter mentioned, defendant DEPUTY INSPECTOR DAVID A. GROSSI, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity. He is being sued in his individual and official capacity.
5. At all times hereinafter mentioned, defendant ASSISTANT CHIEF THOMAS P. PURTELL, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.
6. At all times hereinafter mentioned, defendant DEPUTY INSPECTOR CHARLES ORTIZ, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.
7. At all times hereinafter mentioned, defendant CAPTAIN STEWART LEIBER, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.
8. At all times hereinafter mentioned, defendant LIEUTENANT RICHARD HIGGINS, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity

SELECTED TOPICS

Waters and Water Courses

Public Water Supply
 Owner of Land and Appurtenant Carey
 Act Water Rights

Secondary Sources

[§ 94.Right to water developed by project—Contracts](#)

45 Am. Jur. 2d Irrigation § 94

...The Secretary of the Interior may enter into contracts with existing irrigation districts and other state water agencies to provide them with water and may agree to purchase the irrigation facilities ...

[Right of owner of land within reclamation project in respect of which a water right was allowed upon application pursuant to Reclamation Act to a perpetual right beyond the control of the Federal Government for a sufficient amount beneficially to irrigate the land](#)

115 A.L.R. 1320 (Originally published in 1938)

...The National Reclamation Act (43 U. S. C. A. §§ 371 et seq.), which was enacted to provide a method to reclaim the arid and semiarid public lands in the West by means of largescale irrigation projects,...

[§ 9:22.Federal preemption of state law—Congressional deference to state law—Reclamation Act of 1902](#)

L. of Water Rights and Resources § 9:22

...Congress has expressly deferred to state law in the Reclamation Act of 1902 and the Federal Water Power Act of 1920. Section 8 of the Reclamation Act provides, in part, "nothing in this Act shall be co..."

[See More Secondary Sources](#)

Briefs

[Brief for Intervenors-Respondents Natural Resources Defense Council, et al.](#)

2005 WL 66837

Orff v. United States of America
 Supreme Court of the United States.
 January 07, 2005

...The sovereign immunity waiver section of the Reclamation Reform Act of 1982, 43 U.S.C. §390uu, is reprinted in Pet. App. 47a. The plaintiffs and appellants below, petitioners here, are Francis A. Orff,...

[Brief of Central Arizona Water Conservation District, Maricopa-Stanfield Irrigation & Drainage District, Central Arizona Irrigation and Drainage District and Arizona Department of Water Resources as Amici Curiae in Support of Respondents](#)

2005 WL 65491

Orff v. United States of America
 Supreme Court of the United States.
 January 07, 2005

...FN* Counsel of Record for Amici Curiae FN1. Because the Central Arizona Water Conservation District, the Maricopa-Stanfield Irrigation & Drainage District and the Central Arizona Irrigation and Drainage...

Brief for Appellees

1958 WL 91994

Ivanhoe Irr. Dist. v. All Parties and Persons
 Supreme Court of the United States.
 April 02, 1958

...The opinions of the Supreme Court of California in the four cases, Nos. 122-125 (Appendices to Jurisdictional Statement, pp. 1, 139, 180, 205), are reported at 47 C. 2d 597, 306 P. 2d 824 (No. 122); 47...

[See More Briefs](#)

Trial Court Documents

[Livechi v. The Atlantic Beach Sewer Dist.](#)

9. At all times hereinafter mentioned, defendant SGT. DEBORAH LAGRASTA, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. She is being sued in her individual and official capacity.

10. At all times hereinafter mentioned, defendant POLICE OFFICER KYLE BACH, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.

11. At all times hereinafter mentioned, defendant POLICE OFFICER JOSEPH AZEVEDO, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.

12. At all times hereinafter mentioned, defendant POLICE OFFICER DESTEFANO, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.

13. At all times hereinafter mentioned, defendant POLICE OFFICER DIAZ, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.

14. At all times hereinafter mentioned, defendant SGT. JOSEPH MINEO, was and still is employed by THE CITY OF NEW YORK as a member of the New York City Police Department. He is being sued in his individual and official capacity.

15. Prior to the commencement of this action, on or about January 12, 2010, and within ninety (90) days after the occurrence complained of herein, plaintiffs served a written Notice of Claim upon defendant THE CITY OF NEW YORK in compliance with [General Municipal Law § 50-e](#).

16. On or about April 12, 2010, plaintiff REGINALD MCREYNOLDS submitted to a [General Municipal Law § 50-h](#) hearing by Corporation Counsel for THE CITY OF NEW YORK.

17. At least thirty (30) days have elapsed since the abovementioned Notice of Claim was presented for adjustment and/or payment thereof, and defendant THE CITY OF NEW YORK has neglected and/or refused to make such payment and/or adjustment.

18. On or about October 26, 2009 at approximately 0112 hours p.m. Plaintiff who was returning to his girlfriends apartment with take out food, was falsely detained, stopped and questioned, imprisoned, arrested assaulted and battered by defendants on or about 3352 Hull Avenue, Bronx, New York. The false detention, stopping and questioning and the false imprisonment and false arrest and assault and battery of plaintiff occurred without any probable cause and without any legal nor factual bases therefore and was conducted solely based on racial profiling.

19. As a direct and proximate result of said stop and questioning, false detainment, imprisonment and false arrest and assault and batter by defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

20. Following plaintiff's illegal detention and imprisonment and arrest he was taken to the confines of the 52nd Precinct in Bronx County. While at the 52nd Precinct plaintiff was made to wait for hours before being interviewed. A complete investigation was not done by Defendants' and the investigation and interviews were the product of a conspiracy to violate plaintiff's civil rights and discriminate against him. Following his interview plaintiff was suspended without pay.

21. On December 9th, 2009, plaintiff was falsely charged with violations of the New York City Police Department rules and regulations. The disciplinary charges pending against the plaintiff prevent his clean service retirement. Plaintiff served over Nineteen (19) years with NYPD with a completely clean disciplinary record, with no performance issues and until the date of incident received out standing evaluations.

Upon information and belief similarly situated white officers have not been suspended or charged as plaintiff. Plaintiff suffered other adverse employment actions as a result of the discrimination by Defendants'.

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiff repeats and reiterates each and every allegation as set forth in paragraphs "1" through "19" with the same force and effect as if fully set forth herein.

23. On or about October 26, 2009, plaintiff REGINALD MCREYNOLDS was illegally stopped and questioned by Defendants.

24. As a direct and proximate result of said illegal stop and frisk, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

25. Plaintiff repeats and reiterates each and every allegation as set forth in paragraphs "1" through "22" with the same force and effect as if fully set forth herein.

2010 WL 4411765
Livechi v. The Atlantic Beach Sewer Dist.
Supreme Court of New York, Nassau County
October 27, 2010

...[This opinion is uncorrected and not selected for official publication.] Motion Date. 06/02/10 Upon the foregoing papers, the motion by the Third-Party Defendant, The Incorporated Village of Atlantic Be...

Walsh v. The Inc. Village of Atlantic Beach

2010 WL 4466732
Walsh v. The Inc. Village of Atlantic Beach
Supreme Court of New York, Nassau County
October 27, 2010

...[This opinion is uncorrected and not selected for official publication.] TRIAL/IAS PART 20 Motion Date. 06/02/10 XXX Papers Submitted: Upon the foregoing papers, the motion by the Defendant/Third-Party...

26. Thereafter, plaintiff REGINALD MCREYNOLDS was falsely detained by Defendants.

27. As a direct and proximate result of said false detainment by defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats and reiterates each and every allegation as set forth in paragraphs "1" through "27" with the same force and effect as if fully set forth herein.

29. Thereafter, plaintiff REGINALD MCREYNOLDS was falsely imprisoned and arrested by Defendants.

30. As a direct and proximate result of said false imprisonment and arrest by defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

31. Plaintiffs repeat and reiterate each and every allegation as set forth in paragraphs "1" through "30" with the same force and effect as if fully set forth herein.

32. On or about October 26, 2009, plaintiff REGINALD MCREYNOLDS was assaulted and battered by defendants and improperly handcuffed by defendants, and as a direct and proximate result of being improperly handcuffed, plaintiff sustained severe and permanent injuries.

33. As a direct and proximate result of said assault and battery by defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

34. Plaintiffs repeat and reiterate each and every allegation as set forth in paragraphs "1" through "33" with the same force and effect as if fully set forth herein.

35. Defendants embarked on a course of conduct that deprived plaintiff REGINALD MCREYNOLDS of his rights under the New York State Constitution and Civil Rights Laws.

36. The false arrest, false imprisonment, assault and battery, use of excessive force and illegal stop and questioning of plaintiff REGINALD MCREYNOLDS by defendants were violations of plaintiffs' civil rights.

37. The actions of defendants, acting under color of state and local law, custom and usage, have deprived plaintiff REGINALD MCREYNOLDS of his rights, privileges and immunities under the laws and Constitution of the State of New York, and in particular, of his rights to equal protection and due process.

38. By these actions, defendants have jointly and separately deprived plaintiff REGINALD MCREYNOLDS of his rights under the New York State Constitution.

39. As a direct and proximate result of the foregoing, plaintiff REGINALD MCREYNOLDS sustained injury and damage consisting of loss of liberty, loss of pay, loss of career advancement, legal expense, shock, fright and emotional distress all to his damage, for which Defendants are liable pursuant to the New York State Constitution, jointly and severally.

40. As a result of the individually named defendants' violation of New York State Constitution laws, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

41. Plaintiffs repeat and reiterate each and every allegation as set forth in paragraphs "1" through "40" with the same force and effect as if fully set forth herein.

42. Defendants embarked on a course of conduct that deprived plaintiff REGINALD MCREYNOLDS of his rights under the New York City Civil Rights and Administrative Code.

43. The false arrest, false imprisonment, assault and battery, use of excessive force and illegal stop and questioning of plaintiff REGINALD MCREYNOLDS by defendants were violations of plaintiffs' civil rights.

44. The actions of defendants, acting under color of state and local law, custom and usage, have deprived plaintiff REGINALD MCREYNOLDS of his rights, privileges and immunities under the New York City Civil Rights and Administrative Code, and in particular, of his rights to equal protection and due process.

45. By these actions, defendants have jointly and separately deprived plaintiff REGINALD MCREYNOLDS of his rights under the New York City Civil Rights laws and Administrative Code.

46. As a direct and proximate result of the foregoing, plaintiff REGINALD MCREYNOLDS sustained injury and damage consisting of loss of liberty, legal expense, shock, fright and emotional distress all to his damage, for which Defendants are liable pursuant to the New York City Civil Rights law and Administrative Code.

47. As a result of the individually named defendants' violation of New York City Civil Rights laws and

Administrative Code, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

48. Plaintiffs repeat and reiterate each and every allegation as set forth in paragraphs "1" through "47" with the same force and effect as if fully set forth herein.

49. On or about October 26, 2009 at 0112 hours p.m. on or about 3351 Hull Avenue, Bronx, New York, due to the false arrest, false imprisonment, and the negligence of defendants, plaintiff REGINALD MCREYNOLDS was exposed to danger, assaulted, battered, falsely arrested and falsely imprisoned, and was thereby caused to sustain extreme emotional trauma, severe anxiety and permanent psychological injuries as a result thereof.

50. As a direct and proximate result of the negligent and/or intentional infliction of emotional trauma by defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

51. Plaintiff repeats, reiterates and realleges paragraphs "1" through "50" with the same force and effect as if these paragraphs were restated herein.

52. Defendants City of New York knew or should have known of defendants' propensity to engage in the illegal and wrongful acts detailed above.

53. Defendant City of New York knew or should known that their employees, lacked proper training in order to effectively carrying their duties and were a risk to civilians, law abiding or otherwise, including the Plaintiff herein.

54. The Defendant City of New York had a duty to properly train and supervise their employees acting in a peace officer capacity and to monitor their activities to ensure that they would not pose a threat to the public.

55. Defendant City of New York was negligent in breaching that duty; in failing to properly train and supervise its police officers and take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of defendants.

56. Defendant City of New York has damaged the plaintiff by its failure to properly supervise, train, discipline, review, remove, or correct the illegal and improper acts of defendants.

57. As the employers of the defendants, Defendant City of New York is liable for the damages suffered by Plaintiff as a result of the conduct of Defendants.

58. As a direct and proximate result of the negligent hiring and training of defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

59. Plaintiff repeats, reiterates and realleges paragraphs "1" through "58" with the same force and effect as if these paragraphs were restated herein.

60. Defendants' violations of Plaintiff's constitutional rights while acting under color of law resulted from a Municipal custom, policy and practice pursuant to *Monell v. Department of Social Services*, 438 U.S. at 694 n.58, 98 S.Ct. 2037 n.58.

61. Defendant City of New York failed to train its police officers as to display a deliberate indifference to the constitutional rights to those within the City of New York.

62. Defendant City of New York knew or should have known of the constitutional violations by its police officers but repeatedly failed to make any meaningful investigation into charges of constitutional violations by its police officers.

63. Defendants have deprived plaintiff of his civil, constitutional and statutory rights as a result of the unlawful and improper police stop due to the practice and policy of racial profiling.

64. As a direct and proximate result of the negligent hiring and training of defendants, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

65. Plaintiff repeats, reiterates and realleges paragraphs "1" through "64" with the same force and effect as if these paragraphs were restated herein.

66. The aforementioned incident occurred by reason of the negligence, carelessness and recklessness of the City of New York and its individual police officers.

67. As a result of the aforementioned, Plaintiff sustained severe and serious injuries and other consequential damages.

68. As a direct and proximate result of the negligence, carelessness and recklessness of the City of New York and its individual police officers, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION

69. Plaintiff repeats, reiterates and realleges paragraphs "1" through "68" with the same force and effect as if these paragraphs were restated herein.

70. That on or about the 26TH day of October, 2009, the Defendants, their agents, servants, officers and/or employees conspired together and willfully entered into a scheme to cause, provoke, direct and/or compel a false detention, imprisonment, arrest and assault and battery and violation of civil rights upon and/or to cause serious physical and psychological harm to Plaintiff.

71. On October 26, 2009 on or about 3351 Hull Avenue, Bronx, New York, the said Defendants performed the acts and/or omissions hereinbefore and hereinafter alleged and all such acts and/or omissions were participated in and done by all of the Defendants, their agents, servants, officers and/or employees or by one or more of them as according to the plan of said conspiracy and for the purpose of causing, provoking, directing, and/or compelling a false detention, imprisonment, arrest, assault and battery and violation of civil rights upon plaintiff and to cause serious physical and mental harm to the Plaintiff, resulting in severe injuries to the Plaintiff as aforescribed.

72. The conduct of the Defendants, their agents, servants, officers and/or employees, as described hereinabove was willful, wanton, reckless and intentional and was totally without justification, cause or provocation, or any reasonable belief as to the existence of any such justification, cause or provocation and was the direct result of racial profiling.

73. The willful and intentional assault, attack and threats perpetrated against the Plaintiff pursuant to the said conspiracy and/or scheme was conceived and executed by the Defendants in knowing violation of the law and serves as an absolute basis for the award of punitive damages herein.

74. As a direct and proximate result of the foregoing, plaintiff REGINALD MCREYNOLDS was damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR TWELFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS PURSUANT TO VIOLATIONS OF [NEW YORK STATE EXECUTIVE LAW § 296](#) BASED UPON RACE

75. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "74" above, as if fully set forth herein.

76. Defendants, in their individual and professional capacities, discriminated against Plaintiff based upon his race.

77. Named defendants condoned, tolerated and undertook these actions while acting in their individual and professional capacities.

78. As a result of Defendants race discrimination, Plaintiff suffered significantly.

79. By engaging in the acts set forth in the preceding paragraphs, the named Defendants engaged in an unlawful employment practice as defined by [New York Executive Law § 296\(a\)](#).

80. As a result of the foregoing, Plaintiff has suffered injury and incurred damages because of the race discrimination by defendants; the denial of a safe and hostile free environment; and the embarrassment, humiliation and mental and emotional distress and financial loss as a consequence of Defendants' actions.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS PURSUANT TO VIOLATIONS OF [NEW YORK STATE EXECUTIVE LAW § 296](#) BASED UPON RACE

81. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "80" above, as if fully set forth herein.

82. Defendants, in their individual and professional capacities, discriminated against Plaintiff by engaging in severe and pervasive activities constituting discrimination, including, but not limited to, engaging in, condoning and tolerating discrimination against Plaintiff with respect to the terms and conditions of his employment. The cumulative effect of Defendants conduct has created an abusive, offensive and contaminated work atmosphere. The named Defendants undertook these actions while acting in their individual and professional capacities as Plaintiff's supervisors.

83. As a result of this harassment, Plaintiff suffered adverse employment action, including, but not limited to, the denial of overtime, and unwarranted discipline with suspension without pay.

84. By engaging in the actions set forth in the preceding paragraphs, Defendants engaged in an unlawful discriminatory practice, as defined by [New York Executive Law § 296](#).

85. As a result of the foregoing, Plaintiff has suffered injury and incurred damages because of the suspension without pay, false disciplinary charges and denial of career opportunities arising from his employment with Defendants, the embarrassment, humiliation and mental and emotional distress and financial loss as a consequence of Defendants' actions.

86. Because of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR PLAINTIFF'S FOURTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
PURSUANT TO VIOLATIONS OF NEW YORK CITY HUMAN RIGHTS LAW § 8-107 BASED UPON
RACE**

87. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "86" above, as if fully set forth herein.

88. Defendants discriminated against Plaintiff by engaging in activities constituting race discrimination, including, but not limited to, condoning, tolerating and engaging in discriminatory conduct against Plaintiff with respect to the terms, conditions and privileges of his employment because of his race.

89. Defendants discriminated against Plaintiff by engaging in activities constituting discrimination based upon Plaintiff's race, including but not limited to: condoning, tolerating and engaging discriminatory behavior

90. The named Defendants, condoned, tolerated and undertook these actions while acting in their individual and professional capacities as plaintiff's supervisors.

91. By engaging in the acts set forth in the preceding paragraphs, Defendants engaged in an unlawful employment practice as defined by New York City Human Rights Law § 8-107 for which they are liable.

92. As a result of the foregoing, Plaintiff has suffered injury and incurred damages because of the suspension without pay, false disciplinary charges and denial of career opportunities arising from his employment with Defendants and has suffered embarrassment, humiliation and mental and emotional distress and financial loss as a consequence of the defendants' actions.

99. Because of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiffs demand judgment on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, Eleventh, Twelfth, Thirteen, Fourteenth, Fifteenth and Sixteenth Causes of Action against defendants in a sum that exceeds the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction.

Yours, etc.,

CRONIN & BYCZEK, LLP

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